

HOUSE BILL 2439

By McKenzie

AN ACT to amend Tennessee Code Annotated, Title 55,
Chapter 10, Part 4, relative to oral-fluid testing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Oral-Fluid DUI Testing and Evidence-Based Enforcement Safeguards Act."

SECTION 2. Tennessee Code Annotated, Title 55, Chapter 10, Part 4, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Accredited laboratory" means a laboratory accredited under ISO/IEC/17025 or an equivalent accreditation recognized by the department or the Tennessee bureau of investigation (TBI);

(2) "Approved device list" means a list maintained by the department, in consultation with the TBI and peace officer standards and training commission (POST commission), identifying acceptable oral-fluid screening devices and approved collection kits;

(3) "Articulate facts" means specific, observable facts, actions, or circumstances that can be described in plain language and that are relevant to the asserted legal standard, such as reasonable suspicion or probable cause, as distinguished from generalized impressions or stereotypes. Articulate facts must be contemporaneously documented and must not include generalized, demeanor-based observations unrelated to driving behavior;

(4) "Calibration/verification" means manufacturer-required calibration and verification procedures, including periodic checks, necessary to ensure a device's accuracy and proper functioning, documented in maintenance records;

(5) "Confirmatory test" means a laboratory test performed by an accredited laboratory using scientifically accepted methods, including, but not limited to, GC-MS or LC-MS/MS, to confirm the presence and identity of substances indicated by screening;

(6) "Department" means the department of safety;

(7) "Oral-fluid test" means a test of a person's oral fluid, saliva, or oral mucosal sample used to detect the presence of intoxicants, controlled substances, or metabolites during an investigation conducted under this chapter and is a preliminary screening tool;

(8) "Quality-control check" or "QC check" means a pre-shift or pre-use function test, control test, or internal diagnostic check required by manufacturer guidance or department policy, documented at the time of use; and

(9) "Screening device" means a portable device used roadside or in the field to screen an oral-fluid sample.

(b)

(1) A law enforcement officer may administer an oral-fluid screening test only if:

(A) The screening device and collection kit are on the approved device list;

(B) The officer is currently trained and certified on the specific device being used and its collection protocol; and

(C) The device has completed required calibration/verification and is within the manufacturer's stated maintenance interval.

(2) Before each use, the officer must complete and document a QC check as required by the device manufacturer or agency policy. A device that fails a QC check must be removed from service immediately and must not be used until the issue is corrected and documented.

(3) A device must not be used if the device's maintenance or calibration/verification status cannot be verified at the time of use.

(4) Oral-fluid screening must not be used as a default investigative step and may be administered only after specific, observable driving behavior or other articulable facts supporting impairment are documented.

(c)

(1) At the time an oral-fluid screening test is administered, an officer shall complete an oral-fluid test record that includes, at minimum:

- (A) The date, time, and location;
- (B) The officer's name and certification identifier;
- (C) The device make/model and serial number;
- (D) The cartridge/kit lot number and expiration date;
- (E) The last calibration/verification date;
- (F) The QC check result and any error codes;
- (G) The chain-of-custody details for any collected sample; and
- (H) The device-generated output, if available.

(2) Law enforcement agencies must retain oral-fluid test records and associated maintenance records for no less than three (3) years, or for the

pendency of a criminal or administrative proceeding related to the test, whichever is longer.

(d)

(1) If the state seeks to introduce an oral-fluid screening result as substantive evidence in a criminal proceeding or to support an administrative license consequence, the state shall obtain a confirmatory test from an accredited laboratory.

(2) A confirmatory test may be performed on:

(A) A second oral-fluid sample collected using an approved kit and preserved for laboratory testing; or

(B) A blood sample obtained by lawful means within a clinical setting by a certified medical professional.

(3) If confirmatory testing is not obtained, an oral-fluid screening result may be used only as a preliminary investigative lead and does not, standing alone or in combination with generalized observations, support arrest, detention, or license deprivation, and is not admissible as substantive evidence at trial and does not, by itself, support an administrative license consequence.

(4) A defendant may waive confirmatory testing in writing after consultation with counsel.

(e)

(1) When an oral-fluid sample is collected for laboratory confirmation, the agency must preserve a sufficient portion of the sample for independent retesting.

(2) Upon written request by the defendant or counsel, the state must make preserved sample material available for independent testing by an

accredited laboratory selected by the defendant, subject to reasonable chain-of-custody procedures.

(3) The state must provide written notice of preservation and retesting rights at the time of booking or citation, and in a notice of administrative license action.

(f)

(1) In a criminal proceeding in which oral-fluid testing is used, the state must disclose, upon request and subject to existing discovery rules:

(A) The oral-fluid test record;

(B) Device maintenance and calibration/verification logs;

(C) Officer training and certification records;

(D) Maintained relevant device error logs;

(E) Manufacturer advisories or recall notices known to the agency; and

(F) Confirmatory laboratory reports and chain-of-custody documentation.

(2) The department must publish and keep updated the approved device list and minimum statewide training and recordkeeping standards.

(g)

(1) Failure to comply with subsection (b) or (c) renders the oral-fluid screening result inadmissible as substantive evidence.

(2) Failure to comply with subsection (d) renders the oral-fluid screening result inadmissible as substantive evidence and insufficient, by itself, to support an administrative license consequence.

(3) Failure to comply with subsection (e) or (f) creates a rebuttable presumption that evidence obtained through the noncompliant action is unreliable. This presumption may not be overcome solely by generalized officer testimony. This section does not limit another remedy available under state or federal law.

(4) The department, in consultation with the POST commission and TBI, shall establish minimum audit standards and a corrective action process for agencies that repeatedly fail to comply with this section.

(5) Nothing in this section requires dismissal of a DUI charge where other admissible evidence of impairment exists independent of an oral-fluid screening result.

SECTION 3. The department of safety is authorized to promulgate rules to effectuate this act, including training standards, approved devices and kits, documentation requirements, preservation procedures, audit procedures, and reporting formats. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 4. For purposes of rulemaking, training, and implementation, this act takes effect July 1, 2026, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it, and applies only to enforcement actions occurring on or after that date.